

THOMAS, J., concurring

monstrably erroneous precedent instead of the relevant law's text—as the Court is particularly prone to do when expanding federal power or crafting new individual rights—the Court exercises “force” and “will,” two attributes the People did not give it. The Federalist No. 78, p. 465 (C. Rossiter ed. 1961) (capitalization omitted).

We should restore our *stare decisis* jurisprudence to ensure that we exercise “mer[e] judgment,” *ibid.*, which can be achieved through adherence to the correct, original meaning of the laws we are charged with applying. In my view, anything less invites arbitrariness into judging.²

I

The Court currently views *stare decisis* as a “‘principle of policy’” that balances several factors to decide whether the scales tip in favor of overruling precedent. *Citizens United v. Federal Election Comm’n*, 558 U. S. 310, 363 (2010) (quoting *Helvering v. Hallock*, 309 U. S. 106, 119 (1940)). Among these factors are the “workability” of the standard, “the antiquity of the precedent, the reliance interests at stake, and of course whether the decision was well reasoned.” *Montejo v. Louisiana*, 556 U. S. 778, 792–793 (2009). The influence of this last factor tends to ebb and flow with the Court’s desire to achieve a particular end, and the Court may cite additional, ad hoc factors to reinforce the result it chooses. But the shared theme is the need for a “special reason over and above the belief that a prior case was wrongly decided” to overrule a precedent. *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, 864 (1992). The Court has advanced this view of *stare decisis* on the ground that “it promotes the evenhanded, predictable, and consistent development of legal principles” and “contributes to the actual

²My focus in this opinion is on this Court’s adherence to its own precedents. I make no claim about any obligation of “inferior” federal courts, U. S. Const., Art. III, § 1, or state courts to follow Supreme Court precedent.